

SENATE No. 2938

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, February 9, 2026.

The committee on Health Care Financing to whom was referred the Senate Bill to promote increased access to patient care through equitable reimbursement (Senate, No. 783), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 2938).

For the committee,
Cindy F. Friedman

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote increased access to patient care through equitable reimbursement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by adding the
2 following section:—

3 Section 35. (a) (1) Coverage offered by the commission to an active or retired employee
4 of the commonwealth insured under the commission shall not make a distinction, for the
5 purposes of participation, coverage, and payment, between physicians licensed pursuant to
6 chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced
7 practice nursing role pursuant to section 80B of chapter 112, if the physician or certified
8 registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure
9 and certification. Nothing in this subsection shall prevent the commission from establishing
10 varying reimbursement rates based on quality or performance measures if such measures are the
11 same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists
12 authorized to practice in advanced practice nursing roles pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) (1) The commission shall reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that the commissioner of insurance would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112.

(2) The commission may not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this subsection.

SECTION 2. Section 6 of chapter 118E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the words “board-certified physicians”, in lines 6 and 7, the following words:—

, certified registered nurse anesthetists

SECTION 3. Said chapter 118E of the General Laws is hereby further amended by adding the following section:—

Section 87. (a) (1) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid-managed care organization, accountable care organization, or primary care clinician plan shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant

34 to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting
35 within the scope of their practice pursuant to their licensure and certification. Nothing in this
36 subsection shall prevent the division from establishing varying reimbursement rates based on
37 quality or performance measures if such measures are the same for physicians licensed pursuant
38 to chapter 112 and certified registered nurse anesthetists authorized to practice in advanced
39 practice nursing roles pursuant to said section 80B.

40 (b) A claim submitted for payment must identify the National Provider Identifier of the
41 physician or certified registered nurse anesthetist who provided the service.

42 (c) The division and its contracted entities shall: (i) reimburse a contracted certified
43 registered nurse anesthetist who is authorized to practice in an advanced practice nursing role
44 pursuant to said section 80B in an amount not less than the allowed amount that it would
45 reimburse for the same service if provided by a contracted provider who is a physician licensed
46 pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians
47 licensed under chapter 112 to comply with this subsection.

48 SECTION 4. Chapter 175 of the General Laws, as appearing in the 2024 Official Edition,
49 is hereby amended by inserting after section 108N the following section:—

50 Section 108O. (a) (1) An individual policy of accident and sickness insurance issued
51 under section 108 that provides hospital expense and surgical expense insurance and any group
52 blanket or general policy of accident and sickness insurance issued under section 110 that
53 provides hospital expense and surgical expense insurance that is issued or renewed within or
54 without the commonwealth shall not make a distinction, for the purposes of participation,
55 coverage, and payment, between physicians licensed pursuant to chapter 112 and certified

56 registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant
57 to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting
58 within the scope of their practice pursuant to their licensure and certification. Nothing in this
59 subsection shall prevent the commissioner from establishing varying reimbursement rates based
60 on quality or performance measures as long as such measures are the same for physicians
61 licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice
62 in an advanced practice nursing role pursuant to said section 80B.

63 (b) A claim submitted for payment must identify the National Provider Identifier of the
64 physician or certified registered nurse anesthetist who provided the service.

65 (c) An individual policy of accident and sickness insurance issued under section 108 that
66 provides hospital expense and surgical expense insurance and any group blanket or general
67 policy of accident and sickness insurance issued under section 110 that provides hospital expense
68 and surgical expense insurance that is issued or renewed within or without the commonwealth
69 shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to
70 practice in an advanced practice nursing role pursuant to said section 80B in an amount not less
71 than the allowed amount that it would reimburse for the same service if provided by a contracted
72 provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the
73 reimbursement amount paid to physicians licensed under chapter 112 to comply with this
74 section.

75 SECTION 5. Chapter 176A of the General Laws is hereby amended by adding the
76 following section:—

Section 39. Any contract between a subscriber and a corporation under an individual or group hospital service plan delivered, issued or renewed within the commonwealth shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commissioner of insurance from establishing varying reimbursement rates based on quality or performance measures if such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) Any contract between a subscriber and a corporation under an individual or group hospital service plan delivered, issued or renewed within the commonwealth shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 6. Section 1 of chapter 176B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of “Certified nurse midwife”, the following definition:—

“Certified registered nurse anesthetist”, a registered nurse who is authorized to practice in an advanced practice nursing role as a certified registered nurse anesthetist pursuant to section 80B of chapter 112.

SECTION 7. Said section 1 of said chapter 176B, as so appearing, is hereby further amended by inserting after the word “physicians” in the definition of “Medical service”, in line 13, the following words:—

or certified registered nurse anesthetists

SECTION 8. Said section 1 of said chapter 176B, as so appearing, is hereby further amended by inserting, after the definition of “Nonprofit medical service plan”, the following definition:—

“Participating certified registered nurse anesthetist”, a certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, and who agrees in writing with a medical service corporation to perform medical services for subscribers and covered dependents and to abide by the by-laws, rules and regulations of such corporation.

SECTION 9. Said chapter 176B, as so appearing, is hereby further amended in section 4T by striking out, wherever they appear, the words “certified registered nurse anesthetist or”.

SECTION 10. Said chapter 176B of the General Laws is hereby further amended by adding the following section:—

Section 26. A contract between a subscriber and a medical service corporation shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commissioner from establishing varying reimbursement rates based on quality or performance measures if such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) A contract between a subscriber and a medical service corporation shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 11. Section 1 of chapter 176G of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting, after the definition of “Carriers”, the following definition:—

“Certified registered nurse anesthetist”, A certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112.

SECTION 12. Said section 1 of said chapter 176G, as so appearing, is hereby further amended by inserting after the word “physician” in the definition of “Health services”, in line 82, the following:—

or certified registered nurse anesthetist

SECTION 13. Said chapter 176G of the General Laws is hereby amended by adding the following sections:-

Section 34. A contract between a member and a health maintenance organization shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commissioner from establishing varying reimbursement rates based on quality or performance measures as long as such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) A contract between a member and a health maintenance organization shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

Section 35. When a law or rule requires authorization or involvement of a physician as a condition of reimbursement or coverage of anesthesia services, that requirement may be fulfilled by a certified registered nurse anesthetist practicing in an advanced practice role under section 80B of chapter 112.

SECTION 14. Chapter 176I of the General Laws is hereby amended by adding the following section:-

Section 14. A preferred provider contract between a covered person and an organization shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of said chapter 112, if the physician or advanced practice registered nurse is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commissioner from establishing varying reimbursement rates based on quality or performance measures as long as such measures are the same for physicians licensed pursuant to chapter 112

and certified registered nurse anesthetists practicing authorized to practice in an advanced practice nursing role pursuant to section 80B of said chapter 112.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or advanced practice registered nurse who provided the service.

(c) A preferred provider arrangement between a covered person and an organization shall: (i) reimburse a preferred provider certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112 in an amount not less than the allowed amount that it would reimburse for the same service if provided by a preferred provider who is a physician licensed pursuant to said chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 15. The commissioner of insurance shall promulgate rules and regulations for the implementation and enforcement of the provisions of this act.